

Surface Lease Agreement

Instrument No. PENDING | San Juan County, NM | Prepared August 3, 2026

PARTIES

Lessor / Grantor: Private - R. Yazzie Family Trust
Lessee / Grantee: NTEC Clean Energy

RECITALS

THIS SURFACE LEASE AGREEMENT ("Agreement") is entered into by and between the parties identified above. Lessor is the owner of, or holds authority to lease, the lands described herein, and desires to lease said lands to Lessee for the purposes set forth below, subject to all applicable federal, tribal, and state regulations, including where applicable the oversight of the Bureau of Indian Affairs (BIA), Bureau of Land Management (BLM), and the Office of Surface Mining Reclamation and Enforcement (OSMRE).

PREMISES & LEGAL DESCRIPTION

Legal Description: T24N R11W Sec 30, SW1/4
Gross Acreage: 640 acres, more or less

The leased premises are located within the Public Land Survey System as described above, together with all rights of ingress and egress reasonably necessary for the operations contemplated hereunder.

TERM

Effective Date: TBD
Primary Term Ends: TBD

This Agreement shall remain in effect for the primary term stated above and so long thereafter as operations are conducted or the premises are Held By Production (HBP), unless sooner terminated in accordance with its terms.

CONSIDERATION

Annual Rental: \$96,000
Royalty Rate: N/A

Lessee shall pay the rentals and royalties set forth above in accordance with the payment schedule maintained by the NTEC Land Department. Time is of the essence with respect to all payment obligations.

OBLIGATIONS & COMPLIANCE

- Lessee shall conduct all operations in a good and workmanlike manner consistent with prudent industry practice.
- Lessee shall comply with all reclamation, environmental, and bonding requirements applicable to the premises.
- Lessee shall carry insurance and furnish certificates as required, and shall indemnify Lessor as provided herein.

- Reports, rentals, and royalty statements shall be tendered on or before their respective due dates.

SPECIAL PROVISIONS

Option to lease 640 ac for utility-scale solar. Option exercise deadline requires escalation.

EXECUTION

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date first written above.

LESSOR / GRANTOR - Private - R. Yazzie Family Trust

LESSEE / GRANTEE - NTEC Clean Energy

Date: _____

Date: _____